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Module code: LA6076

Module Name: Evidence

Student Number: [REDACTED]

IN THE SOUTHWARK CROWN COURT

REGINA

-V-

YUSUF AHMED ALI

SKELETON ARGUMENT ON BEHALF OF THE PROSECUTION

APPLICATION TO THE COURT:

1. This skeleton argument is respectfully submitted on behalf of the Crown in response to the Defence's application to exclude Mr Yusuf Ahmed Ali's confession under **section 76(2) of the Police and Criminal Evidence Act 1984 ("PACE") and Article 6 of the European Convention on Human Rights ("ECHR")**.
2. The Crown seeks an order admitting Mr Ali's confession into evidence at trial. It is submitted that the confession was lawfully obtained, made voluntarily without oppression, and remains reliable and relevant to the matters in issue.
3. The evidence demonstrates that Mr Ali was informed of his rights under PACE 1984, including the right to legal advice, which he knowingly and voluntarily waived. The interview was properly conducted, fairly recorded, and free from coercive or deceptive practices.
4. Accordingly, the Crown invites the Court to dismiss the Defence application, admit the confession into evidence, and allow the trial to proceed with the confession forming part of the Crown's case.
5. It is respectfully submitted that permitting properly obtained and reliable confession evidence serves the wider interests of justice, fairness, and public confidence in the criminal justice system.

BACKGROUND FACTS:

6. The Defendant, Mr Yusuf Ahmed Ali, was arrested following a proactive operation by the Metropolitan Police Service targeting an organised network suspected of manufacturing, distributing, and using counterfeit credit cards in the Newham area of London.

7. Pursuant to a lawfully obtained search warrant, officers executed a search at Mr Ali's residential address: 13 Bolitha Road, E13 2DW. During the search, officers recovered fifteen counterfeit credit cards containing fabricated account information intended for fraudulent financial transactions.

8. A personal search of Mr Ali conducted contemporaneously revealed an unsigned and embossed blank credit card concealed in his jacket pocket, suggesting direct involvement in the production or handling of illicit financial instruments.

9. Mr Ali was arrested on suspicion of conspiracy to defraud and possession of material for making a false instrument. He was cautioned immediately upon arrest in accordance with **Code C of the Police and Criminal Evidence Act 1984**.

10. Upon arrival at Forest Gate Police Station, Mr Ali was again reminded of his right to free and independent legal advice under **section 58 of PACE 1984**. The custody record clearly records that Mr. Ali was offered access to a solicitor, which he explicitly and voluntarily declined.

11. Mr Ali participated in a recorded interview lasting approximately **41 minutes**. During this interview, he made several admissions linking himself to both the conspiracy to defraud and the possession of counterfeit materials.

12. The Defence now asserts that Mr Ali's confession was improperly obtained, alleging denial of legal advice, emotional pressure due to personal circumstances, and oppressive police conduct.

13. However, the objective evidence including the custody record, interview transcripts, and officer testimony demonstrates compliance with PACE 1984, confirming that Mr Ali's rights were respected, his confession was voluntary, and the procedures followed were lawful.

SUBMISSIONS ON BEHALF OF THE PROSECUTION:

OPPRESSION UNDER SECTION 76(2)(A) PACE:

14. It is respectfully submitted that Mr Ali's confession was not obtained by oppression. Under section **76(8) of PACE 1984**, "oppression" includes torture, inhuman or degrading treatment, and serious psychological pressure (**R v Fulling [1987] QB 426**).

15. Emotional distress arising from personal circumstances does not, without more, amount to oppression (**R v Miller [1998] EWCA Crim 112**). The Crown emphasises that concern for external matters, such as Mr Ali's daughter's health, was neither exploited nor intensified by the officers.

16. In **Beuze v Belgium (2018) 68 EHRR 13**, the European Court of Human Rights reiterated that oppression requires an active element of improper conduct by state agents, not merely the existence of vulnerability on the part of the accused.

17. The interview with Mr Ali was recorded, lasted a reasonable period (41 minutes), and shows a cooperative, non-aggressive approach from the officers involved. There was no evidence of raising pressure, suggestive questioning, or coercive tactics.

18. Accordingly, the Crown submits that there is no breach of **section 76(2)(a) PACE 1984**, and the confession remains admissible.

RELIABILITY UNDER SECTION 76(2)(B) PACE:

19. **Section 76(2)(b)** provides that a confession may be excluded if anything said or done was likely to render it unreliable. However, the burden remains on the Defence to demonstrate a real possibility of unreliability (**R v Mushtaq [2005] UKHL 25**).

20. Mr Ali's confession was coherent, internally consistent, and matched objective findings, including the discovery of counterfeit cards on his person and premises.

21. The circumstances are distinguishable from **R v Paris, Abdullah and Miller (1993) 97 Cr App R 99**, where prolonged and repeated leading questions led to the exclusion of unreliable confessions. No similar pattern of questioning or misconduct occurred here.

22. In **McGarry v United Kingdom (2002) 35 EHRR 30**, the ECtHR acknowledged that a confession obtained without undue influence, even where the suspect was under emotional strain, can be reliable if procedural safeguards were respected as they were in Mr Ali's case.

23. Consequently, it is respectfully submitted that the confession remains reliable and should be admitted.

RIGHT TO LEGAL ADVICE AND ARTICLE 6 ECHR:

24. Mr Ali was informed of his right to legal advice and explicitly declined it, as recorded in the custody record. **Section 58 PACE and Article 6(3)(c) ECHR** were thus complied with.

25. In **Ibrahim v United Kingdom (2016) 63 EHRR 9**, the ECtHR held that a waiver of the right to a lawyer is valid if made knowingly, voluntarily, and intelligently. There is no evidence that Mr Ali's waiver was coerced, uninformed, or induced by police misconduct.

26. The Defence may argue that emotional distress invalidated the waiver. However, in **Beuze v Belgium (2018) 68 EHRR 13**, the Court clarified that emotional vulnerability alone is insufficient to nullify a waiver unless there is evidence of state pressure or misconduct absent here.

27. Mr Ali's decision was autonomous. He did not seek to revoke his waiver or request legal advice at any later stage, further reinforcing the validity of his informed choice.

28. Accordingly, the right to legal advice was respected, and no breach of **Article 6 ECHR** occurred.

FAIRNESS UNDER SECTION 78 PACE:

29. Under **section 78(1) PACE 1984**, evidence may be excluded where its admission would adversely affect the fairness of proceedings. However, the threshold for exclusion remains high (**R v Sang [1980] AC 402**).

30. Fairness must be assessed holistically, considering the entirety of the proceedings rather than focusing narrowly on any one factor (**R v Khan (Sultan) [1997] AC 558**).

31. Mr Ali's confession was obtained fairly. He was cautioned appropriately, offered legal advice, given breaks, and treated with dignity. The interview conditions were lawful and did not undermine the integrity of his admissions.

32. In **McGarry v United Kingdom (2002)**, the Court reinforced that the exclusion of probative evidence should not occur unless the unfairness is clear and substantial. No such unfairness is evident here.

33. The Crown submits that admitting Mr Ali's confession would not compromise the fairness of the trial but would instead promote an accurate and informed determination of the facts.

PUBLIC INTEREST AND JUSTICE:

34. There is a strong public interest in prosecuting serious financial crime. Counterfeit credit card operations undermine public trust in financial institutions and cause widespread economic harm.

35. In **R v Khan (Sultan) [1997] AC 558**, the House of Lords stressed that the administration of justice must ensure serious offenders are prosecuted efficiently, provided that fairness is observed.

36. Properly obtained confession evidence is vital to public confidence in criminal proceedings. Its exclusion would unjustifiably weaken the prosecution case without enhancing fairness.

37. It is respectfully submitted that allowing Mr Ali's confession into evidence would promote justice, support the fair trial process, and maintain public trust in the criminal justice system.

LIKELY SUBMISSIONS BY THE DEFENCE:

38. The Defence is likely to argue that Mr Ali's confession was obtained through oppression, contrary to **section 76(2)(a) of PACE 1984**. They may submit that Mr Ali's emotional vulnerability, specifically anxiety concerning his daughter's serious medical condition, rendered him susceptible to undue influence during the interview process.

39. It may be contended that even in the absence of direct threats or violence, emotional exploitation or failure to take appropriate steps to protect a vulnerable suspect can amount to oppression. The Defence may rely on **R v Fulling [1987] QB 426** to argue that oppression encompasses serious psychological abuse and not merely physical coercion.

40. The Defence may also argue that Mr Ali's confession should be excluded under **section 76(2)(b) of PACE 1984** on the ground of unreliability. They are likely to assert that Mr Ali's emotional distress rendered his admissions involuntary and unreliable, potentially drawing analogies with the coercive atmosphere found in **R v Paris, Abdullah and Miller (1993) 97 Cr App R 99**.

41. Further, the Defence may submit that the waiver of legal advice was neither fully informed nor voluntary, in breach of **section 58 PACE 1984 and Article 6(3)(c) ECHR**. They might argue that emotional stress invalidated Mr Ali's capacity to make an autonomous, informed decision regarding his right to a solicitor.

42. Reference may be made to **Salduz v Turkey (2008) 49 EHRR 19**, where the denial of early access to legal assistance was held to violate the right to a fair trial. The Defence may attempt to analogise Mr Ali's circumstances to suggest that his waiver was ineffective and that the absence of legal representation compromised the fairness of the interview.

43. The Defence could argue cumulatively that the combination of alleged emotional vulnerability, absence of legal advice, and alleged failure of officers to respond appropriately to Mr Ali's mental state substantially undermined the fairness of the proceedings. Accordingly, they may submit that the confession should be excluded under section 78 of PACE 1984.

44. Finally, the Defence may seek to raise broader human rights concerns, relying on the principle that procedural fairness is essential to ensuring justice. They may cite the ECtHR's reasoning in **Beuze v Belgium (2018)** to argue that restrictions on legal assistance must be justified by compelling reasons and counterbalanced by sufficient procedural safeguards, which they may argue were absent here.

REBUTTAL OF DEFENCE SUBMISSIONS:

45. It is respectfully submitted that the Defence's reliance on alleged emotional vulnerability does not establish oppression under **section 76(2)(a) of PACE 1984**. Concern for a family member's health, while naturally distressing, does not automatically amount to oppressive circumstances unless it is deliberately exploited by the authorities (**R v Miller [1998] EWCA Crim 112**).

46. The objective evidence, including the custody record, audio recordings, and officer testimony, confirms that Mr Ali was treated fairly, courteously, and without improper pressure. The mere presence of emotional strain is insufficient to satisfy the legal test for oppression as articulated in **R v Fulling [1987] QB 426**.

47. The Defence's attempt to analogise this case with **R v Paris, Abdullah and Miller (1993) 97 Cr App R 99** is misplaced. In Paris, there was repeated aggressive questioning over hours without breaks or legal advice. Mr Ali's interview, by contrast, lasted only 41 minutes, was properly conducted, and observed all procedural safeguards.

48. The Crown further submits that the waiver of legal advice was valid. In **Ibrahim v United Kingdom (2016) 63 EHRR 9**, the ECtHR held that a waiver is effective if made knowingly and voluntarily. Mr Ali was clearly informed of his right to legal assistance and declined it freely without inducement or coercion.

49. The Defence's reliance on **Salduz v Turkey (2008) 49 EHRR 19** is misplaced. In Salduz, access to a lawyer was entirely denied. In the present case, Mr Ali was offered legal advice but chose to decline. His decision was neither obstructed nor discouraged by officers.

50. Further, in **Beuze v Belgium (2018) 68 EHRR 13**, the ECtHR acknowledged that restrictions on early access to legal advice must be justified; however, where a waiver is properly made, no violation arises. Mr Ali's situation falls squarely within the scope of a valid waiver.

51. In relation to section 78 PACE 1984, it is submitted that no unfairness capable of compromising the fairness of the proceedings has been established. In **R v Sang [1980] AC 402**, the Court emphasised that exclusion is a serious step, only warranted where evidence is obtained in a manner that renders the trial unfair not simply because of emotional circumstances without misconduct.

52. The procedural safeguards set out in PACE 1984 were fully observed. Mr Ali's confession was voluntarily made, properly recorded, and consistent with physical evidence found.

53. It is therefore respectfully submitted that none of the Defence submissions provide a basis for exclusion, and the confession remains admissible.

CONCLUSION:

54. For the reasons outlined above, the Crown respectfully submits that Mr Yusuf Ahmed Ali's confession was obtained lawfully, voluntarily, and reliably, with full compliance to the statutory safeguards under the **Police and Criminal Evidence Act 1984 ("PACE")** and the European Convention on Human Rights ("ECHR").

55. No evidence has been adduced by the Defence capable of demonstrating oppression under section **76(2)(a) PACE** or unreliability under section **76(2)(b)**. Mr Ali's emotional concern for his daughter, while understandable, was not exploited by the police nor did it compromise the voluntariness or reliability of his confession.

56. Mr Ali's right to legal advice under **section 58 PACE and Article 6(3)(c) ECHR** was properly respected. His voluntary waiver was informed, genuine, and free of coercion. No procedural impropriety occurred that would undermine the integrity of the confession.

57. Admitting the confession would not adversely affect the fairness of the proceedings under section 78 PACE 1984. Rather, excluding reliable, lawfully obtained evidence would risk distorting the trial process and would not serve the interests of justice.

58. The principles established in **R v Khan (Sultan) [1997] AC 558 and R v Sang [1980] AC 402** emphasise the importance of ensuring that serious criminal offences are properly prosecuted while maintaining fairness. Excluding relevant and reliable confession evidence absent a real risk to trial fairness would be contrary to public interest.

59. Furthermore, effective prosecution of serious organised crime, such as financial fraud involving counterfeit credit cards, is vital to maintaining public confidence in the criminal justice system and deterring sophisticated financial offending.

60. Accordingly, the Crown respectfully invites the Court to reject the Defence's application, admit Mr Ali's confession into evidence, and allow the jury to consider all relevant material when determining the verdict.